

[doc. web n. 10039471]
Provision of June 20, 2024
Register of provisions
n. 372 of June 20, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of national legislation to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data, as well as the free movement of such
data and repealing Directive 95/46/EC (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gdpd.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Ms. XX complained about the
online publication, at the address "<https://...>",
as well as the indexing on search engines of a
ranking formed following the pre-selection test of a
public competition announced by the Municipality of Nepi, containing the list of candidates
admitted and not admitted.

The complainant also claimed that, despite numerous requests for removal of the aforementioned ranking addressed to the said Municipality, it continued to be available online - a circumstance that was verified by the Authority on February 10, 2022.

During the investigation, the Authority also noted the lack of regulation, pursuant to Article 28 of the Regulation, of the relationship with the company Grafiche E. Gaspari S.r.l. (hereinafter, also "Company"), which has been in charge for many years of managing the institutional website and its related content on behalf of and in the interest of the Municipality.

2. The investigative activity.

In response to a request for information made by the Authority pursuant to Article 157 of the Code, the Municipality of Nepi, with a note dated March 2, 2022, stated, in particular, that:

it "promptly acted to resolve the problem" and "immediately contacted its external supplier, Gaspari srl [...] for the removal of the above-mentioned page";

"the assistance [...] has definitively eliminated the indicated data, which concerned an obsolete address no longer reachable from the official portal of the Municipality"; the Municipality itself has "therefore verified that the link indicated no longer displays the page" and believes, therefore, "to have definitively resolved the problem."

In response to a subsequent request from the Authority, aimed at acquiring both the information already requested but not received, as well as some additional information, with a note dated June 13, 2022, the aforementioned Municipality stated, in particular, that:

it was "urgently requested from the responsible [offices of the Municipality] [...] the utmost collaboration in providing a detailed report on all activities undertaken [...]";

the "Municipality has identified the legal basis for the processing, which would justify the online dissemination of the ranking of the public competition in which the [complainant] participated, in Article 19 of Legislative Decree 33/2013, as well as in Article 15, D.P.R. May 9, 1994, No. 487. The Entity acted in good

faith, inspired by the principle of total accessibility of documents held by public administrations as per Article 1 of the aforementioned decree. In the Entity's belief, the legislation regarding the obligations of advertising, transparency, and dissemination of information by public administrations would have allowed it to publish the ranking in question for a period of 5 years, starting from January 1 of the year following the year from which the alleged obligation of publication commenced";

"the ranking in question was published in the 'Transparent Administration' section [of the] Municipality on September 28, 2016, and was intended for publication on the institutional website until December 31, 2021, pursuant to Article 8 of Legislative

Decree

33/2013 [...]. The indexing of the site took place in application of Article 9 of Legislative Decree 33/2013 [...]; the “previous institutional website, on which it was originally published the ranking, it was removed from the Internet by the provider, the company Gaspari S.r.l., and replaced with a new site [...]”; “subsequent to the publication of the new site, the ranking in question was erroneously disseminated on the site <https://...>, no longer accessible from the new portal of the Entity”; “upon receiving the request from the [claimant], the Municipality erroneously assumed that the publication of the ranking was necessary until December 31, 2021”; “following the request for information, notified by the Authority [...] on February 14 [2022], the Municipality promptly contacted the provider's assistance service to request the removal of the ranking and then verified that no web page is now linked to the indicated link”; “the Municipality took action to subsequently transmit a copy of the agreement on the protection of personal data entered into by the Entity and the company Gaspari S.r.l. pursuant to Article 28 of the Regulation [...]”; the Municipality “will promptly act as soon as it obtains all the documentation and becomes aware to inform the authority [...] in a timely manner of the removal of the ranking formed following the pre-selection test of a public competition announced by the Municipality of Nepi”. Subsequently, with a note dated November 11, 2022, following a further request for elements from the Authority, the Municipality declared, in particular, that: “subsequent to the publication of the new site, the ranking in question was still erroneously disseminated on the site <https://...>, no longer accessible from the new portal of the Entity”; after contacting the provider's assistance service, “the Entity then verified that no web page is now linked to the indicated link”; “the aforementioned article (content) was published on the institutional site on February 3, 2015, in the “News” section (albeit with a different nomenclature and respective access link), and subsequently migrated to the new version of the platform, without undergoing any substantial modification (except for the links through which the contents were accessible in 2015) until February 18, 2022, when the .pdf document attached to the content was removed from the Internet following the removal request”;

“upon the expiration of the publication term in the section of Transparent Administration, identified by virtue of Article 19 of Legislative Decree 33/2013 [...] the ranking was removed from that section of the institutional site, without being eliminated from the “News” section of the same”; “the factor that misled [the] Municipality at the time of providing the previous responses to the Authority [...] is the presence in the link address of the document in question of the text portion “bussola”.

In fact, the previous platform used by the Entity was commercially named “Bussola” (later changed to MyCity), therefore the links of the pdf documents and jpg images uploaded to the platform automatically assumed the aforementioned name. This nomenclature led the Municipality to assume that the document was a remnant left on the network after the transition from the old to the new version of the platform, the management of which was entrusted to the company Grafiche E. Gaspari S.r.l.”; “the publication of the ranking in question in the “News” section of the institutional site, accessible via the link: <https://...>, and the simultaneous indexing on search engines, took place from February 3, 2015, to February 18, 2022, without a suitable legal basis for such processing of personal data”.

With the same note, the Municipality produced a copy of an agreement entered into on November 3, 2022, with the aforementioned Company pursuant to Article 28 of the Regulation. As indicated in the technical report prepared by Grafiche E. Gaspari S.r.l., which the Municipality had tasked with managing, in general, the institutional website, the portal “Transparent Administration” was entrusted, instead, to “a company different from Gaspari”. In this regard, the Authority therefore requested the Municipality to produce a copy of the service contract entered into with Grafiche E. Gaspari S.r.l., to which the aforementioned agreement for the protection of data referred, as well as the details of the provider to whom the

Municipality had entrusted the management of the “Transparent Administration” section of its institutional website, attaching a copy of the relevant service contract, as well as a copy of the agreement for the protection of data entered into pursuant to Article 28 of the Regulation with that provider.

Subsequently, the Municipality, with a note dated March 30, 2023, as later supplemented on May 16, 2023, specified that, in any case, “the publications in the “Transparent Administration” section of the institutional site, pursuant to Legislative Decree 22/2013, are made directly by the Municipality's staff, while [the aforementioned Company] mainly deals with any assistance related to the functioning of the software,” and attached a copy

of the requested documentation.

With a note dated October 13, 2023, the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality of Nepi, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for the aforementioned Municipality having:

- disseminated online the personal data of the claimant and the interested parties indicated in the ranking, in the absence of a suitable legal basis, in violation of Articles 5, paragraph 1, letter a), 6, paragraph.

- 1. letters c) and e) of the Regulation, as well as 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, in force at the time when the dissemination of the personal data in question began, and in the current text);

- processed the personal data of users of the website and other interested parties whose data was published on the same website, without having regulated the relationship with Grafiche E. Gaspari S.r.l., the contractor of the instrumental service aimed at managing the institutional website of the Municipality, in violation of Article 28 of the Regulation and, as a result, making personal data available to the aforementioned Company in the absence of a suitable legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation and Article 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, and in the currently applicable text).

With the same note, the aforementioned data controller was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

In a note dated November 14, 2023, the Municipality of Nepi, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that:

- “the dissemination concerned only common data, namely the name and surname of the participant in the competition, with the indication of the score achieved and the outcome of the test (“admitted” or “not admitted”) and involved a limited number of interested parties, amounting to 33 participants admitted to the subsequent test, and 178 not admitted”;

- “it was an isolated and non-systematic episode, following which no legal actions have been taken by the interested parties against the Municipality, not even by the complainant herself, Ms. XX. The Municipality therefore believes that the dissemination of data on the institutional website did not cause harm to the interested parties”;

- “the Municipality, by publishing the pre-selection ranking of the public competition in which Ms. XX participated, acted in good faith, inspired by the principle of total accessibility of documents held by public administrations as per Article 1 of Legislative Decree No. 33/2013 and the provisions of Article 10 of Legislative Decree No. 267/2000, which generally provides that all acts of the municipal administration are public”;

- “the Municipality of Nepi is a small entity (just over 9,000 inhabitants), which is in a constant state of staff shortage; the latter, not being integrated, is overloaded with tasks. At the time of the incident, moreover, the Head of the Transparency, Anti-Corruption, and Privacy Sector had been transferred to another entity and his position had been vacant for a considerable period”;

- “regarding the allegation that the aforementioned documents are ‘devoid of contractual references in place between this Municipality and the company Grafiche E. Gaspari S.r.l.’, it is noted that the contract for the management of the Municipality of Nepi’s website is the only contract in place with Grafiche E. Gaspari S.r.l.”;

- “following the complaint filed by Ms. XX, the undersigned Municipality, with the assistance of the Data Protection Officer, organized a series of meetings held on November 3, 2022, February 23, 24, and 28, 2023, March 24, 2023, and April 17, 2023, with the heads of each service aimed at raising awareness and increasing compliance with the rules regarding the protection of personal data”;

- “the Municipality has maintained a high degree of cooperation with the Authority to remedy the

violation and mitigate its possible negative effects”.

It is also noted that, within the same investigation, specific elements have also been acquired from Grafiche E. Gaspari S.r.l., against which a separate and independent procedure has been initiated for aspects attributable to its responsibility.

3. Outcome of the investigative activity. The applicable legislation.

Preliminarily, it is stated that this provision concerns exclusively the processing carried out by the Municipality of Nepi and, on its behalf, by the Company and not distinct processing that may have been carried out on behalf of the Municipality or the Company itself, even in the context of the provision, by other parties, of additional services, albeit connected, to those subject to this investigation, remaining in any case without prejudice to any assessment regarding the existence of the prerequisites for initiating separate proceedings.

The personal data protection legislation provides that public entities, even when operating in the conduct of competitive, selective, or evaluative procedures, preliminary to the establishment of an employment relationship, may process the personal data of the interested parties (Article 4, no. 1, of the Regulation) if the processing is necessary “to comply with a legal obligation to which the data controller is subject” (consider specific obligations provided for by national legislation “for recruitment purposes,” Articles 6, paragraph 1, letter c), 9, paragraphs 2, letter b) and 4; 88 of the Regulation) or “for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller” (Article 6, paragraph 1, letters c) and e), of the Regulation and Article 2-ter of the Code).

Such processing must, in any case, find its basis in Union or Member State law that must pursue a public interest objective and

propri obblighi di pubblicazione, le amministrazioni pubbliche devono garantire la trasparenza e l'accessibilità dei dati e delle informazioni relative all'organizzazione, all'attività e ai risultati conseguiti”.

3.2. Conseguenze dell'illecita diffusione dei dati

L'illecita diffusione dei dati personali dei partecipanti alla prova preselettiva ha comportato una violazione dei diritti degli interessati, in particolare il diritto alla riservatezza e alla protezione dei dati personali. Tale violazione può dar luogo a responsabilità da parte del titolare del trattamento e del responsabile del trattamento, nonché a sanzioni amministrative e risarcimenti per i danni subiti dagli interessati.

3.3. Misure correttive

In considerazione di quanto sopra, si raccomanda al Comune di Nepi di adottare misure correttive per garantire il rispetto delle normative sulla protezione dei dati personali. Tali misure possono includere la revisione delle procedure di pubblicazione delle graduatorie e la formazione del personale coinvolto nel trattamento dei dati personali, al fine di prevenire future violazioni.

4. Conclusioni

In conclusione, la pubblicazione dei dati personali dei partecipanti alla prova preselettiva da parte del Comune di Nepi è avvenuta in violazione delle disposizioni normative in materia di protezione dei dati. È fondamentale che il Comune adotti le misure necessarie per garantire la conformità alle normative vigenti e per tutelare i diritti degli interessati.

other obligations of legal publicity, public administrations publish the announcements for the recruitment, in any capacity, of personnel within the administration, as well as the evaluation criteria of the Commission, the outlines of the tests, and the final rankings, updated with any progression of the eligible non-winners. Public administrations publish and keep constantly updated the data referred to in paragraph 1” (art. 19, paragraphs 1 and 2; see Memorandum of the President of the Authority for the protection of personal data on the draft budget law 2020, commission 5°, Budget, of the Senate of the Republic, of November 12, 2019, doc. web 9184376; see also, most recently, provision of April 11, 2024, no. 235, doc. web no. 10019523 as well as provisions of March 23, 2023, no. 83, doc. web no. 9888096, and April 28, 2022, no. 151, doc. web no. 9778996, and the previous provisions referred to therein, including, in particular, the provision of November 25, 2021, no. 407, doc. web no. 9732406). These provisions define, from the perspective of data protection, the scope of permitted processing

and constitute its legal basis by establishing limits, conditions, and prerequisites for the online publication of personal data within the context of competitive procedures. In this framework, the Authority has, over time, provided specific indications to public administrations regarding the precautions to be adopted for the dissemination of personal data on the Internet for the purposes of transparency and publicity of administrative action, particularly in 2014, with the “Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities” (provision no. 243 of May 15, 2014, doc. web no. 3134436, part I and II, specifically paragraph 3.b).

Given the above, the publication by the Municipality of Nepi on its institutional website of note prot. no. 1983 of February 2, 2015, with which, within the framework of the aforementioned competitive procedure, the ranking of the pre-selection test was approved, with the list of candidates admitted (no. 33) and not admitted (no. 178) to the written test, among whom, as not admitted, was also the complainant, resulted in the dissemination of personal data in the absence of an adequate legal basis, in violation of articles 5, 6 of the Regulation, as well as 2-ter of the Code, as confirmed by the Municipality itself during the investigation (see “without adequate legal basis for such processing of personal data,” note of November 11, 2022, cited).

3.2. The lack of regulation of the relationship with the service provider pursuant to art. 28 of the Regulation

For the purposes of compliance with the regulations on the protection of personal data, it is necessary, as a preliminary matter, to accurately identify the subjects who, in various capacities, may process personal data and clearly define their respective attributions, particularly that of the data controller and the data processor and the subjects who operate under their direct responsibility (art. 4, points 7 and 8, 28 and 29 of the Regulation). In this framework, the data controller, in preparing the technical and organizational measures that meet the requirements established by the Regulation, also from the perspective of security (arts. 24 and 32 of the Regulation), may use a processor to carry out certain processing activities, to whom it gives specific instructions (see recital 81 of the Regulation). In this case, the controller “only uses processors that provide sufficient guarantees to implement [the aforementioned measures] adequately so that the processing meets the requirements of the Regulation and ensures the protection of the rights of the data subjects” (art. 28, par. 1, of the Regulation), regulating the related relationship with a contract or another legal act, in written form, and giving documented instructions regarding the processing (art. 28, pars. 3 and 9, of the Regulation). This is also to avoid processing (communication to third parties) in the absence of an adequate legal basis (given the notion of “third party” as per art. 4, point 10, of the Regulation; see art. 2-ter, paragraphs 1 and 4, letter a), of the Code, regarding the definition of “communication”). The processor is, in any case, authorized to process the data of the data subjects “only on documented instructions from the controller” (art. 28, par. 3, letter a), of the Regulation; in this regard see Cass., Sez. I Civ., order no. 21234 of July 23, 2021, which confirmed a provision of the Authority, although with reference to a different context of processing and the previous regulatory framework), having to assist the latter in ensuring compliance with the obligations arising from the data protection regulation (art. 28, par. 3, letter f), of the Regulation). These principles have also been confirmed by the Court of Cassation, which, among other aspects, recently stated that the processing of personal data carried out by the subject delegated by the controller in the absence of formal appointment in the role of processor is unlawful (see Cass., Sez. I Civ., ruling no. 35256 of December 18, 2023, which confirmed the provision of July 22, 2021, no. 294, doc. web no. 9698597).

That said, in light of what emerged at the conclusion of the preliminary investigation and the statements made by the Municipality, also taking into account the elements acquired within the framework of the separate investigation conducted against the Company, it has been established that the functions performed for an extended period by the Company, on behalf of and in the interest of the Municipality (see municipal determination of assignment of service no. 861 and statements made... from the Company), have involved the processing of personal data of multiple data subjects (users of the website and other interested parties whose data are published in specific sections of the website),

with respect to which the Municipality is nonetheless the data controller, processing them based on legal obligations and for the pursuit of its institutional purposes, determining the means and methods of processing, as well as the main terms of service execution based on contracts concluded with the supplier. In this regard, it appears that the Municipality, "having ascertained the unavailability [of the aforementioned act, proceeded to] draft the document," obtaining the relevant signature from the Company only on November 3, 2022 (see note of November 11, 2022). This means that, having not regulated the relationship with the aforementioned supplier in terms of data protection until the aforementioned date, the Municipality has acted in violation of Article 28 of the Regulation.

Nor can these observations be considered overcome in light of the documents subsequently transmitted by the Municipality, as these are documents not signed by the parties, undated, and lacking references to the contractual relationships in place between the Municipality and the Company (see notes of March 30, 2023, and May 16, 2023, in the records). As previously clarified by the Guarantor regarding similar cases (see provision of July 18, 2023, nos. 313 and 314, web docs nos. 9920645 and 9920664; provision of July 21, 2022, nos. 268, 269, and 270, web docs nos. 9811271, 9813326, and 9811732; provision of September 17, 2020, nos. 160 and 161, web docs nos. 9461168 and 9461321; provision of February 11, 2021, no. 49, web doc no. 9562852; provision of December 17, 2020, nos. 280, 281, and 282, web docs nos. 9524175, 9525315, and 9525337; as well as provision of February 10, 2022, nos. 43 and 44, web doc no. 9751498; see also "Guidelines 07/2020 on the concepts of data controller and data processor in the GDPR," adopted on July 7, 2021, by the European Data Protection Board, specifically note 42) and, lastly, confirmed by the aforementioned case law, in the absence of a signed agreement pursuant to Article 28 of the Regulation (and unless other autonomous conditions exist that may legitimize the processing of personal data by a supplier), the processing must be considered carried out in the absence of an adequate legal basis and in violation of the principle of lawfulness (see Cass., Sec. I Civ., ruling no. 35256 of December 18, 2023, where it is stated that "in the absence of 'designation' [... pursuant to Article 28 of the Regulation] with a specific contract or other equivalent act, nor having identified other conditions that could legitimize the processing of personal data of the users of the service in question, their processing, by [...], must be considered carried out in the absence of an adequate legal basis and, therefore, in violation of Articles 5, par. 1, lett. a), and 6 of the Regulation"; see also Cass., Sec. I Civ., order no. 21234 of July 23, 2021).

In light of the above considerations, given the lack of regulation of the relationship with the Company in terms of data protection, it must be concluded that the Municipality has made available to the Company the personal data of the users of the website and other interested parties whose data were published there in the absence of an adequate legal basis, resulting in unlawful processing of personal data, in violation of Articles 5, par. 1, lett. a), and 6 of the Regulation and Article 2-ter of the Code (both in the text prior to the amendments made by Decree Law No. 8 of October 8, 2021, and in the current text).

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under Article 168 of the Code - while deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply.

For the determination of the applicable norm, in terms of timing, the principle of legality referred to in Article 1, paragraph 2, of Law No. 689/1981 must be recalled, according to which laws that provide for administrative sanctions apply only in the cases and times considered therein. This determines the obligation to take into account the provisions in force at the time of the violation committed, which - given the permanent nature of the contested offenses - must be identified at the moment of cessation of the conduct. It is believed that the Regulation and the Code constitute the legislation under which to evaluate the treatments in question.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality of Nepi is noted, for which the aforementioned Municipality has:

- disseminated online the personal data of the complainant and the interested parties indicated in the ranking, in the absence of an adequate legal basis, in violation of Articles 5, par. 1, lett. a), 6, par. 1, lett. c) and e), of the Regulation, as well as Article 2-ter of the Code (both in the text prior to the amendments made by Decree Law No. 8 of October 8, 2021, in force at the time the dissemination of the personal data in question began, and in the current text);
 - processed the personal data of the users of the website and other interested parties whose data were published on the same website, without having regulated the relationship with Grafiche E. Gaspari S.r.l., the contractor of the instrumental service aimed at managing the institutional website.
- of the investigation;
- the Municipality has taken steps to ensure that similar incidents do not occur in the future, including implementing training for staff on data protection regulations.

5.2. The conduct referred to in paragraph 3.1 of this provision

Considering that the violation of the provisions cited in the previous paragraph 3.1 of this provision, resulting from the dissemination of personal data of the participants in the pre-selection test, including the complainant, occurred as a result of a single conduct (same treatment or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violation concerns Articles 5, paragraph 1, letter a), 6, paragraph 1, letters c) and e), of the Regulation, as well as Article 2-ter of the Code, subject to the administrative sanction provided for by Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

With specific regard to the nature, severity, and duration of the violation (Article 83, paragraph 2, letter a), of the Regulation), it is necessary to consider, in particular, the significant number of affected individuals involved (over two hundred) and the circumstance that the ranking was published online for a particularly long period, namely from February 3, 2015, to February 18, 2022, the day on which the aforementioned content was definitively removed. On the other hand, regarding the subjective aspect of the violation (Article 83, paragraph 2, letter b), it must be taken into account that it was “an isolated and non-systematic episode,” due to “a mere human error resulting from the mistaken belief of the necessity to disseminate the pre-selection ranking” (see note of November 14, 2023), with the Municipality acting under the erroneous belief that it could pursue transparency objectives in administrative action, without considering the current regulatory framework and the indications provided over time by the Authority to all public entities in this matter (both with the “Guidelines on the processing of personal data, including in acts and administrative documents, carried out for publicity and transparency purposes on the web by public entities and other obligated entities” mentioned above, and with numerous decisions on individual cases). It is also considered that, in any case, the publication did not concern personal data belonging to the special categories referred to in Article 9 of the Regulation or data relating to criminal convictions or offenses (Article 83, paragraph 2, letter g), of the Regulation).

In light of these circumstances, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That being said, the following mitigating circumstances should be considered favorably towards the data controller:

- there are no previous relevant violations committed by the data controller, having the same nature as those established in relation to the facts of the complaint, or previous measures under Article 58 of the Regulation (Article 83, paragraph 2, letter e), of the Regulation);

- the Municipality has offered good cooperation with the Authority during the investigation, having also represented that it has removed the aforementioned content, albeit following the initiation of the investigation.

of the investigation by the Authority (art. 83, par. 2, lett. f), of the Regulation);

- the Municipality of Nepi is a small territorial entity (just over 9,000 inhabitants; art. 83, par. 2, lett. k), of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €8,000 (eight thousand) for the violation of articles 5, par. 1, lett. a), 6, par. 1, lett. c) and e), of the Regulation, as well as 2-ter of the Code, as an administrative monetary sanction considered, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account, in particular, the extended period during which the aforementioned data was published online on the official website of the Municipality, it is also deemed necessary to apply the accessory sanction of publication on the Authority's website of this provision, as provided for by art. 166, comma 7 of the Code and art. 16 of the Authority's Regulation no. 1/2019.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

5.2. The conduct referred to in paragraph 3.2 of this provision

Considering that the violation of the provisions cited in the previous paragraph 3.2 of this provision, due to the lack of regulation of the relationship with Grafiche E. Gaspari S.r.l. in terms of data protection and the consequent provision of data to the Company itself in the absence of a suitable legal basis, occurred within a single conduct (same treatment or treatments connected to each other), art. 83, par. 3, of the Regulation applies, according to which the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violation concerns (in addition to art. 28 of the Regulation) articles 5, par. 1, lett. a) and 6 of the Regulation, subject to the administrative sanction provided for by art. 83, par. 5, of the Regulation, the total amount of the sanction is to be quantified up to €20,000,000.

The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

With specific regard to the nature, severity, and duration of the violation (art. 83, par. 2, lett. a), of the Regulation), it must be considered, in particular, that the treatment in question involved personal data of all users of the official website of the Municipality as well as other interested parties whose personal data were published there, and that the Municipality, which had outsourced the management of the website for an extended period (see municipal determination of service assignment no. 861 and statements made by the Company), only entered into an agreement with the Company pursuant to art. 28 of the Regulation on November 3, 2022. It is also deemed necessary to consider that the violation did not concern personal data relating to special categories of data (art. 9 of the Regulation) or criminal convictions and offenses (art. 10 of the Regulation) (art. 83, par. 2, lett. g), of the Regulation).

In light of these circumstances, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, the following mitigating circumstances should be considered favorably towards the data controller:

- there are no previous relevant violations committed by the data controller, having the same nature as those established in relation to the complaint facts, or previous provisions pursuant to art. 58 of the Regulation (art. 83, par. 2, lett. e), of the Regulation);

- the Municipality has offered good cooperation with the Authority during the investigation, having entered into an agreement pursuant to art. 28 of the Regulation with the Company during the investigation (art. 83, par. 2, lett. f), of the Regulation);

- the Municipality of Nepi is a small territorial entity (just over 9,000 inhabitants; art. 83, par. 2, lett. k),

of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €12,000 (twelve thousand) for the violation of articles 55, par. 1, lett. a), 6, par. 1, lett. c) and e), of the Regulation, as well as 2-ter of the Code, as an administrative monetary sanction considered, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account, in particular, the extended period during which the relationship between the Municipality and the Company remained without adequate regulation in terms of data protection, it is also deemed necessary to apply the accessory sanction of publication on the Authority's website of this provision, as provided for by art. 166, comma 7 of the Code and art. 16 of the Authority's Regulation no. 1/2019.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of Nepi for violation of Articles 5, paragraph 1, letter a), 6, and 28 of the Regulation, as well as Article 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, in force at the time when the dissemination of the personal data in question began, and in the current text), in the terms set forth in the reasoning;

ORDERS

the Municipality of Nepi, represented by the legal representative pro tempore, with registered office at Piazza Comune 20 - 01036 Nepi (VT), Tax Code 00088940564, to pay the sum of €20,000 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

ENJOINS

the aforementioned Municipality, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €20,000 (twenty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- the publication of this provision on the website of the Authority pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Regulation of the Authority No. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Regulation of the Authority No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 20, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei